



Aboriginal and Torres Strait
Islander health practice
Chinese medicine
Chiropractic
Dental
Medical
Medical radiation practice
Nursing and Midwifery
Occupational therapy
Optometry
Osteopathy
Pharmacy
Physiotherapy
Podiatry
Psychology

Australian Health Practitioner Regulation Agency

Private and Confidential

7 June 2019

Mr Richard McLean

By email only: rich@richmclean.com.au

Dear Mr McLean

Assessment of notification about Dr John Whitaker

Thank you for taking the time to inform us of your concerns. We appreciate the effort this takes, and would like to assure you that we take all issues raised with us seriously.

The Australian Health Practitioner Regulation Agency (AHPRA) is a national body whose main aim is to protect the health and safety of the public. We work closely with the Medical Board of Australia (the Board) to ensure that only health practitioners who are trained and qualified to practise in a competent and ethical manner are registered.

In assessing the concern you raised, we will now ask ourselves the following questions.

1. Is this concern about a registered health practitioner or student?
2. Are we the right agency to consider this concern?
3. Is there a risk that the health practitioner could harm the public?
4. Do we have good evidence of this?
5. Is the risk to the public so serious that the Board needs to restrict this practitioner's practice to make the public safe?

What we will do now

The concern you raised is now being assessed. We will let you know what we have decided to do next. We will let you know if anything changes, or when we have made a decision. For your information, I have enclosed the principles that guide our decision-making and our Guide for notifiers.

What we can do and what we cannot do

Once we look at the matter more closely, the Board can:

- caution the practitioner
- make sure the practitioner can practise only with certain restrictions
- refer the matter to another body (such as a tribunal or a panel) for action or mediation
- decide to take no action.

But neither the Board nor AHPRA can:

- make a health practitioner provide the treatment you want
- pay you compensation, or order a health practitioner to give you a refund or pay you compensation
- make a health practitioner apologise to you
- make a health practitioner give you access to your records
- deal with health service providers such as hospitals or community health centres
- take any part in any legal action you may be involved in.

Australian Health Practitioner Regulation Agency

GPO Box 9958 | Melbourne | Victoria | 3001 | www.ahpra.gov.au

When the Board and AHPRA take action about practitioners, we take action as required to keep the public safe. It is not our role to punish practitioners, nor to act for any individual.

How long it will take

It takes time to consider notifications. We realise this can be frustrating, but we need to give everybody concerned time to answer our questions. Sometimes, we will tell you how we have addressed your concerns fairly quickly. When we need to investigate further, this can take much longer. The average time we take to address notifications is about six months, but it can take up to two years if the issues are very complicated. We ask you to be patient.

Your role

We take all issues raised with us seriously, and we might need your help to assess your concern.

It may help us to be able to look at other information, such as those parts of your health record that are relevant to this issue. We would appreciate it if you could sign and return the enclosed consent form to us **no later than 14 June 2019**.

Please note that from here on, we will call the information you provide a 'notification'. And we will call you a 'notifier', because you have notified us about your concerns.

Privacy

The way we gather, manage and share other people's personal information is explained in our [privacy policy](#).

Unless you asked us not to tell the practitioner that you made the notification, we will provide your name and a copy of all the information you provide to the practitioner. Providing practitioners with the names of people who raise concerns and a copy of any relevant information is important in ensuring that a fair process is followed. If we cannot give this information to the practitioner then it may pose challenges in addressing your concerns.

We will write to tell you the outcome of the notification. This letter may contain personal information about other people. We ask that you treat it confidentially and sensitively. Commonwealth, State or Territory laws may restrict how you can use other people's personal information.

Please contact us if you have any new information about this matter. We are available to speak with you more about the notifications process if that would help you. I can be contacted on (08) 7071 5516 or by email to info@ahpra.gov.au

Yours sincerely,



Matthew Scrivener

Notifications Officer

Reference Number: 00415796 RB

Encl: Notification information sheet

Encl: consent form A

The notifications process: How AHPRA handles concerns



Did you know?

- **More than 70% of matters close with no action taken**, sometimes because the practitioner understood your concern and has addressed it.
- In **11%** of matters the health practitioner is cautioned.
- In **12%** of matters the health practitioner has restrictions placed on their practice.
- Less than **1%** of matters result in a health practitioner's registration being cancelled or suspended.

63% of matters don't proceed beyond initial assessment.
40% of all matters are closed within 90 days.

37% of matters reach this stage.
44% of these take more than 12 months to complete.

Web www.ahpra.gov.au
Phone 1300 419 495

What do I need to know?

People raise concerns (also known as notifications) with us for many different reasons. You may be seeking outcomes that are not possible through AHPRA, but which could be achieved through your health complaints entity (HCE).

Every state and territory has an HCE which helps people resolve many issues with health services and practitioners.

For more information, search for 'HCE' on the AHPRA website, or contact your case officer directly.

Web www.ahpra.gov.au
Phone 1300 419 495

...because I would like:

- an explanation
- an apology
- a refund or compensation
- access to my health records or to have them fixed, or
- change in policy or practice at a hospital, medical/dental practice, pharmacy, ambulance or community health service.

Speak directly to the practitioner, or submit the concern to an HCE

Why am I raising this concern?

...because I think that:

- a practitioner's behaviour is placing the public at ongoing risk
- a practitioner is practising their profession in an unsafe way, or
- a practitioner's ability to make safe judgments about their patients might be impaired because of their health.

Submit the concern to AHPRA

AHPRA

Consent authorisation form A

If you are the patient, please complete this form.

I, _____ born on the ____ day of the ____ month _____ hereby consent for the Australian Health Practitioner Regulation Agency (AHPRA) and the relevant health practitioner Board, as defined under the Health Practitioner Regulation National Law (the National Law), to be authorised to:

1. access information, including my health records, related to the notification to the Board
2. provide my health records and other relevant information to the practitioner who is the subject of the notification in order to obtain a response
3. provide my health records and other relevant information to another entity if the Board decides to refer the matter to another entity under the National Law, and
4. provide my health records and other relevant information to any necessary experts in order to obtain independent opinions in relation to the notification and associated issues.

Print your name

☐

By checking this box you, the patient, acknowledge that you have read, understand and accept the statements above.

Date

Signature